

Federal Constitution

NOTES

Art. 146

Clause (2)

- a. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- b. *See* Art. 146c(3).

Art. 146A

1. Added by Act 26/1963, section 54, in force from 16-09-1963. This Article which was repealed by Act A354, section 35, in force from 27-08-1976 read as follows:

“146A. (1) In respect of members of the judicial and legal service who are employed in the Borneo States the functions to be discharged by the Judicial and Legal Service Commission shall, so long as this Article has effect, be discharged by a branch of that Commission established for the Borneo States.

(2) The branch of the Judicial and Legal Service Commission for the Borneo States shall consist of—

- (a) the Chief Justice of the High Court in Borneo, who shall be Chairman;
- (b) the legal advisers of the Borneo States;
- (c) the Chairman of the State Public Service Commission (if any) in each of the Borneo States; and
- (d) two persons designated by the Federal Government from among the members of the main body of the Judicial and Legal Service Commission or Public Services Commission.

(3) *(Repealed)*.

(4) *(Repealed)*.

(5) Notwithstanding Clause (2) of Article 134, so long as there is for the Borneo States a branch of Judicial and Legal Commission under this Article, the jurisdiction of the Commission shall extend to members of the public service of a Borneo State who are seconded to the judicial and legal service, and for the purpose of the Judicial and Legal Service Commission they shall be deemed to be members of that service.

(6) This Article shall have effect until the end of August 1968, and thereafter in relation to the Borneo States, until the Federal Government determines to the contrary.”.

2. *See* Art. 138(2), 146c(1), (2) & (3).

3. In the shoulder note, the word “Branch” substituted for the word “Branches” by Act 59/1966, section 2, in force from 19-09-1966.

Clause (1)

The words “or in Singapore” and the words “or for Singapore, as the case may be” which appeared after the words “Borneo States” were deleted by Act 59/1966, section 2, in force from 19-09-1966.

Clause (3)

This Clause was repealed by Act 59/1966, section 2, in force from 19-09-1966 and read as follows:

“(3) The branch of the Judicial and Legal Service Commission for Singapore shall consist of—

- (a) the Chief Justice of the High Court in Singapore, who shall be Chairman;
- (b) the legal adviser of the State;
- (c) the chairman of the State Public Service Commission in Singapore;
- (d) a judge of the High Court in Singapore designated by the Chief Justice;
- (e) not more than two members of the Public Services Commission, being the member or members of the main body serving under Clause (3) of Article 146B on the branch for Singapore of that Commission or, if that Clause is not in operation, a member or members designated by the Federal Government.”.

Federal Constitution

NOTES

Art. 146A—(cont.)

Clause (4)

This Clause was repealed by Act 31/1965, subsection 2(2), in force from 01-07-1965 and read as follows:

“(4) At any time when the branch of the Judicial and Legal Service Commission for the Borneo States includes among its members more than one chairman of a State Public Service Commission the following provisions shall apply:

- (a) not more than one of those chairmen shall attend any meeting of the branch, and the one entitled to attend and be summoned to any meeting shall be determined by or in accordance with the rules of the branch and (subject to the rules) any general or special directions of the chairman of the branch; and
- (b) the branch shall not make appointments to posts in the State of either of those chairmen at a meeting which he does not attend and has not been summoned to, unless he consents to their doing so.”.

Clause (5)

The words “or for Singapore” which appeared after the words “for the Borneo States” and the words “or of Singapore, as the case may be,” which appeared after the words “of a Borneo State” were deleted by Act 59/1966, section 2, in force from 19-09-1966.

Clause (6)

This Clause was substituted by Act 59/1966, section 2, in force from 19-09-1966, and replaced the earlier Clause which reads as follows:

“(6) This Article shall have effect until the end of August 1968, and thereafter—

- (a) in relation to the Borneo States, until the Federal Government determines to the contrary; and
- (b) in relation to Singapore, until Parliament otherwise provides by an Act passed with the concurrence of the Governor.”.

Art. 146B

1. Added by Act 26/1963, section 55, in force from 16-09-1963.

Clause (1)

- a. The words “or in Singapore” which appeared after the words “a Borneo State” were deleted by Act 59/1966, section 2, in force from 09-08-1965.
- b. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clause (2)

This Clause was substituted by Act A354, paragraph 36(a), in force from 27-08-1976. The earlier Clause read as follows:

“(2) Subject to Clause (3), the branch of the Public Services Commission established for a State under Clause (1) shall consist of such members of the main body of the Commission as may be designated by the Federal Government and such special members as the Yang di-Pertuan Agong may appoint; and the Yang di-Pertuan Agong in making any appointment under this Clause shall act in his discretion, after considering the advice of the Prime Minister and consulting the Governor of the State.”.

Clause (3)

This Clause was deleted by Act A354, paragraph 36(b), in force from 27-08-1976 and read as follows:

“(3) So long as this Clause has effect, in any State in which there is for the time being a State Public Service Commission, the members of that Commission shall *ex officio* be members of the branch for the State of the Public Services Commission, and that branch shall consist of those members and not more than two members of the main body of the Public Services Commission designated by the Federal Government.”.

Federal Constitution

NOTES

Art. 146B—(cont.)

Clause (6)

The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clause (7)

- a. The words “or Singapore” which appeared after the words “a Borneo State” were deleted by Act 59/1966, section 2, in force from 09-08-1965.
- b. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.
- c. The words “and the branch is constituted in accordance with Clause (3)” after the words “Public Services Commission under this Article” were deleted by Act A354, paragraph 36(c), in force from 27-08-1976.
- d. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

Clause (8)

- a. This Clause was substituted by Act 59/1966, section 2, in force from 09-08-1965. The earlier Clause read as follows:

“(8) Clauses (1) and (3) shall have effect until the end of August, 1968, and thereafter either shall continue to have effect—

 - (a) in relation to a Borneo State, until the Federal Government determines to the contrary; and
 - (b) in relation to Singapore, until Parliament otherwise provides by an Act passed with the concurrence of the Governor.”.
- b. The words “This Article shall have effect until the end of August, 1968, and thereafter it” substituted for the words “Clauses (1) and (3) shall have effect until the end of August, 1968, and thereafter either” by Act A354, paragraph 36(d), in force from 27-08-1976.
- c. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.
- d. *See* Art. 139(4), 146c(1), (2) & (3).

2. This Article was repealed by Act A514, section 13, in force from 15-05-1981 and read as follows:

“146B. (1) In respect of members of the general public service of the Federation who are employed in a federal department in the State of Sabah or Sarawak the functions to be discharged by the Public Services Commission shall, so long as this Clause has effect, be discharged by a branch of that Commission established for the State.

(2) The branch of the Public Services Commission established for a State under Clause (1) shall consist of six members (of whom two shall be from amongst the members of the main body of the Public Services Commission) to be appointed by the Yang di-Pertuan Agong acting in his discretion but after considering the advice of the Prime Minister and after consultation with the Conference of Rulers.

(3) (*Repealed*).

(4) Such member of a branch of the Public Services Commission established under Clause (1) as may be designated by the Chairman of the Commission shall be chairman of the branch.

Federal Constitution

NOTES

Art. 146B—(cont.)

(5) The number of members of the Public Services Commission required by Clause (4) of Article 139 shall be the number of the members of the main body, exclusive of those who are members of a branch but not of the main body.

(6) Where a post in a federal department in the State of Sabah or Sarawak entails duties in or in respect of the other of those States, the branch of the Public Services Commission whose jurisdiction is to extend to that post shall be the branch for the State in which the head of the department is normally stationed or, in any case of doubt or difficulty, whichever branch the Federal Government may determine.

(7) Notwithstanding Clause (2) of Article 134, so long as there is for the State of Sabah or Sarawak a branch of the Public Services Commission under this Article, the jurisdiction of the Public Services Commission shall extend (except as regards the exercise of disciplinary control over them) to members of the public service of the State who are seconded to the general public service of the Federation, other than members in or below such grade as the Yang di-Pertuan Agong, with the concurrence of the Governor, may direct; and for purposes of the Public Services Commission they shall be deemed (except as regards the exercise of disciplinary control over them) to be members of the general public service of the Federation.

(8) This Article shall have effect until the end of August, 1968, and thereafter it shall continue to have effect in relation to the State of Sabah or Sarawak until the Federal Government determines to the contrary.”.

Art. 146c

1. This Article was added by Act 26/1963, section 56, in force from 16-09-1963 and read as follows:

“146c. (1) If provision is made by federal law for establishing a joint service common to the Federation and to a Borneo State or Singapore, or to two or more of those States with or without the Federation, and for conferring jurisdiction in respect of that service on the Judicial and Legal Service Commission or the Public Services Commission, federal law may provide for functions of the Commission in relation to that service to be exercised by any branch for the time being established under Article 146A or 146B for the State or any of the States in question.

(2) In Article 142, paragraph (b) of Clause (4) and, in Article 143, Clause (2) shall have effect in relation to members of a branch of the Judicial and Legal Service Commission or Public Services Commission established under Article 146A or 146B as if the references to federal law included references to State law.

(3) Clause (8) of Article 144 shall apply to a branch of the Judicial and Legal Service Commission or Public Services Commission established under Article 146A or 146B as if it were a separate Commission to which this Part applies; but nothing in those Article shall be taken to require such a branch to make a separate annual report under Article 146.”.

Clause (1)

- a. The words “or Singapore” were deleted and the words “the Borneo” substituted for the words “two or more of those” by Act 59/1966, section 2, in force from 09-08-1965.
- b. The words “Public Services Commission” substituted for the word “Commissions” in the shoulder note, the words “the Judicial and Legal Service Commission or” were deleted after the words “jurisdiction in respect of that service on” and the words “146A or” were deleted after the words “Article”, by Act A354, section 37, in force from 27-08-1976.
- c. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.
- d. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Federal Constitution

NOTES

Art. 146c—(cont.)

Clause (2)

The words “Judicial and Legal Service Commission or” were deleted after the words “members of a branch of the” and the words “146A or” were deleted after the words “Article” by Act A354, paragraph 37(c), in force from 27-08-1976.

Clause (3)

- a. The word “of” substituted for the word “or” which appeared after the words “Judicial and Legal Service Commission” by Act 59/1966, section 2, in force from 09-08-1965.
 - b. The words “Judicial and Legal Service Commission or” were deleted after the words “a branch of the” and the words “146A or” were deleted after the words “established under Article” by Act A354, paragraph 37(c), in force from 27-08-1976.
2. This Article was repealed by Act A514, section 13, in force from 15-05-1981.

Art. 146d

This Article was added by Act 26/1963, section 57, in force from 16-09-1963.

Clause (1)

- a. The words “(1)” at the beginning of the Clause was deleted and the words “(except as regards the exercise of disciplinary control over them)” were deleted after the words “Police Force Commission shall extend” and the words “(except as regards the exercise of disciplinary control over them)” were deleted after the words “Police Force Commission they shall be deemed” by Act A354, paragraphs 38(a) and (b), in force from 27-08-1976.
- b. The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

Clauses (2) & (3)

These Clauses which were repealed by Act A354, paragraph 38(c), in force from 27-08-1976, read as follows:

“(2) If in a Borneo State there is not a board exercising disciplinary control over the said persons and having the following membership, that is to say:

- (a) the Chairman of a State Public Service Commission in the State; and
- (b) the legal adviser of the State; and
- (c) the senior officer of police in the State; and
- (d) a representative of the officer of police in general command of the police force;

then Clause (1) shall apply as if it made no exception for the exercise of disciplinary control.

(3) So much of Clause (2) of Article 139 as provides for extending the jurisdiction of the Public Services Commission in certain circumstances to members of the public service of a State shall not apply to members of the public service of a Borneo State who are seconded to the police force.”.

Commission they shall be deemed to be members of the police force.

(2) (*Repealed*).

(3) (*Repealed*).

Protection of pension rights

147. (1) The law applicable to any pension, gratuity or other like allowance (in this Article referred to as an “award”) granted to a member of any of the public services, or to his widow, children, dependant or personal representatives, shall be that in force on the relevant day or any later law not less favourable to the person to whom the award is made.

(2) For the purposes of this Article the relevant day is—

- (a) in relation to an award made before Merdeka Day, the date on which the award was made;
- (b) in relation to an award made after Merdeka Day to or in respect of any person who was a member of any of the public services before Merdeka Day, the thirtieth day of August, nineteen hundred and fifty-seven;
- (c) in relation to an award made to or in respect of any person who first became a member of any of the public services on or after Merdeka Day, the date on which he first became such a member.

(3) For the purposes of this Article, where the law applicable to an award depends on the option of the person to whom it is made, the law for which he opts shall be taken to be more favourable to him than any other law for which he might have opted.

Interpretation of Part X

148. (1) References in this Constitution to a Commission to which this Part applies are, unless the context otherwise requires, references to any of the Commissions established under Articles 138 to 141A.

Federal Constitution

NOTES

Art. 147

See Art. 132(4) & 180(2).

Clause (2): See Art. 180(3).

Art. 148

Clause (1)

- a. The words “, unless the context otherwise requires,” were inserted by Act 10/1960, paragraph 27(a), in force from 01-04-1961. Paragraph 27(b) of the same Act, in force from 31-05-1960, substituted the word “139” for the word “138”. The earlier Clause read as follows:

“(2) In this Part “*ex officio* member” includes a Minister, the Chief Justice and other judges of the Supreme Court, and the Attorney General.”.

- b. Act 26/1963, subsection 53(5), in force from 16-09-1963, restored the original figure “138”.
- c. The word “141A” substituted for the word “141” by Act A354, section 39, in force from 27-08-1976.

Clause (2)

- a. The present Clause was substituted by Act 14/1962, section 32, in force from 21-06-1962. The earlier Clause read as follows:

“(2) In this Part “*ex officio* member” includes a Minister, the Chief Justice and other judges of the Supreme Court, and the Attorney General.”.

(2) In this Part “*ex officio* member” includes a Minister and a judge of the Federal Court, of the Court of Appeal or of a High Court and “State Public Service Commission” means, in relation to any State, a Commission exercising functions in respect of members of the public service of the State and corresponding in status and jurisdiction to the Public Services Commission.

PART XI

SPECIAL POWERS AGAINST SUBVERSION, ORGANIZED VIOLENCE, AND ACTS AND CRIMES PREJUDICIAL TO THE PUBLIC AND EMERGENCY POWERS

Legislation against subversion, action prejudicial to public order, etc.

149. (1) If an Act of Parliament recites that action has been taken or threatened by any substantial body of persons, whether inside or outside the Federation—

- (a) to cause, or to cause a substantial number of citizens to fear, organized violence against persons or property; or
- (b) to excite disaffection against the Yang di-Pertuan Agong or any Government in the Federation; or
- (c) to promote feelings of ill-will and hostility between different races or other classes of the population likely to cause violence; or
- (d) to procure the alteration, otherwise than by lawful means, of anything by law established; or
- (e) which is prejudicial to the maintenance or the functioning of any supply or service to the public or any class of the public in the Federation or any part thereof; or
- (f) which is prejudicial to public order in, or the security of, the Federation or any part thereof,

any provision of that law designed to stop or prevent that action is valid notwithstanding that it is inconsistent with any of the provisions of Article 5, 9, 10 or 13, or would apart from this Article be outside the legislative power of Parliament; and

Federal Constitution

NOTES

Art. 148—(cont.)

- b. Act 26/1963, subsection 59(2) and section 70, in force from 16-09-1963, substituted the words “Federal Court or of a High Court” for the words “Supreme Court” and added thereafter the words “and ‘State Public Service Commission’ means, in relation to any State, a Commission exercising functions in respect of members of the public service of the State and corresponding in status and jurisdiction to the Public Services Commission”.
- c. Act 59/1966, section 2, in force from 19-09-1966, corrected an error in the 1964 Reprint by substituting for the word “and” the words “or of”.
- d. Subsequently subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- e. The words “Federal Court, of the Court of Appeal” substituted for the words “Supreme Court” by Act A885, section 35, in force from 24-06-1994.

Part XI

The heading “SPECIAL POWERS AGAINST SUBVERSION, ORGANIZED VIOLENCE, AND ACTS AND CRIMES PREJUDICIAL TO THE PUBLIC, AND EMERGENCY POWERS” substituted for “SPECIAL POWERS AGAINST SUBVERSION, AND EMERGENCY POWERS” by Act A442, paragraph 5(a), in force from 31-12-1978.

Art. 149

1. The present Article was substituted by Act 10/1960, paragraphs 28(a) and (b), in force from 31-05-1960, and replaced the original Article which read as follows:

“149. (1) If an Act of Parliament recites that action has been taken or threatened by any substantial body of persons, whether inside or outside the Federation, to cause, or to cause a substantial number of citizens to fear, organized violence against persons or property, any provision of that law designed to stop or prevent that action is valid notwithstanding that it is inconsistent with any of the provisions of Article 5, 9, or 10, or would apart from this Article be outside the legislative power of Parliament; and Article 79 shall not apply to a Bill for such an Act or any amendment to such a Bill.

(2) A law containing such a recital as is mentioned in Clause (1) shall if not sooner repealed, cease to have effect on the expiration of a period of one year from the date on which it comes into operation, without prejudice to the power of Parliament to make a new law under this Article.”.

2. *See* Internal Security Act 1960 [Act 82].
3. The words “, action prejudicial to public order, *etc.*” were inserted after the words “subversion” in shoulder note by Act A442, paragraph 5(b), in force from 31-12-1978.

Clause (1)

- a. Paragraph (e) was substituted by Act A442, paragraph 5(c), in force from 31-12-1978. The original paragraph read as follows:

“(e) which is prejudicial to the security of the Federation or any part thereof;”.
 - b. The words “, 10 or 13” substituted for the words “or 10” by Act A514, section 14, in force from 15-05-1981.
4. Paragraph (f) was added by Act A442, paragraph 5(c), in force from 31-12-1978.

Article 79 shall not apply to a Bill for such an Act or any amendment to such a Bill.

(2) A law containing such a recital as is mentioned in Clause (1) shall, if not sooner repealed, cease to have effect if resolutions are passed by both Houses of Parliament annulling such law, but without prejudice to anything previously done by virtue thereof or to the power of Parliament to make a new law under this Article.

Proclamation of emergency

150. (1) If the Yang di-Pertuan Agong is satisfied that a grave emergency exists whereby the security, or the economic life, or public order in the Federation or any part thereof is threatened, he may issue a Proclamation of Emergency making therein a declaration to that effect.

(2) A Proclamation of Emergency under Clause (1) may be issued before the actual occurrence of the event which threatens the security, or the economic life, or public order in the Federation or any part thereof if the Yang di-Pertuan Agong is satisfied that there is imminent danger of the occurrence of such event.

(2A) The power conferred on the Yang di-Pertuan Agong by this Article shall include the power to issue different Proclamations on different grounds or in different circumstances, whether or not there is a Proclamation or Proclamations already issued by the Yang di-Pertuan Agong under Clause (1) and such Proclamation or Proclamations are in operation.

(2B) If at any time while a Proclamation of Emergency is in operation, except when both Houses of Parliament are sitting concurrently, the Yang di-Pertuan Agong is satisfied that certain circumstances exist which render it necessary for him to take immediate action, he may promulgate such ordinances as circumstances appear to him to require.

(2C) An ordinance promulgated under Clause (2B) shall have the same force and effect as an Act of Parliament, and shall continue in full force and effect as if it is an Act of Parliament until it is revoked or annulled under Clause (3) or until it lapses